

2026:PHHC:087056



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**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-32869-2026
DECIDED ON: 09.06.2026**

PARDEEP KUMAR

.....PETITIONER(S)

VERSUS

STATE OF HARYANA

.....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. J.P. Jangu, Advocate
for the petitioner(s)

Ms. Mayuri Lakhanpal Kalia, DAG Haryana

SANDEEP MOUDGIL, J (ORAL)

The jurisdiction of this Court has been invoked under section 483 of BNSS, 2023 439 of CrPC) for the grant of interim regular bail of 30 days to the petitioner in FIR No. 394 dated 28.10.2025 registered u/s 318 (4) of BNS/ 420 of IPC, 319 of BNS/ 416 of IPC & Sections 336(3) of BNS/ 468 of IPC, 338 of BNS/ 467 of IPC, 340 (2) of BNS/ 471 of IPC, 61 (2) of BNS/ 120B of IPC and section 66D of Information and Technology Act, 2000 added later on, Police Station Cyber West, Gurugram (Annexure P-1).

Learned counsel for the petitioner submits that the wife of the petitioner has delivered a child on 22.05.2026 and except the old aged mother, there is no other person to look after and care her. He, therefore, submits that the presence of the petitioner is essential for the medical recovery of his wife and the care of the newborn.

In compliance with the order dated 04.06.2026, status report filed by way of an affidavit of Gaurav Fogat, HPS, Assistant Commissioner of Police, Cyber, Gurugram, is taken on record.

The relevant para of the above-said affidavit would read as under:-

“That so far as the prayer for interim bail on the ground of birth of his child and taking care of mother and child is concerned, it is submitted that ASI Rakesh, P.S. Cyber West, Gurugram visited the address of the petitioner i.e. Vishwakarma Colony, Bhattu Kalan, Fatehabad. There, two neighbours of the petitioner namely Pratap S/o Ramji Lal R/o Bhattu Mandi, Fatehabad and Prithvi Raj S/o Gangajal R/o Bhattu, Fatehabad were found. Both of them got recorded their separate statements that they live in the neighbourhood of the petitioner. Pushpa W/o Pardeep Kumar (present petitioner) lives alone with her child. The parental house of Pushpa is at Jhansal, Distt. Hanumangarh (Rajasthan). They further stated that 15 days ago, Pushpa gave birth to a child through operation. She is being looked after by her mother-in-law Santosh whose age is 53 years. They further stated that Pushpa and her mother-in-law are facing difficulty in care of child as well as Pushpa herself. The statements of neighbours Pratap and Prithvi Raj are attached herewith as Annexure R-2 and Annexure R-3.”

Considering the fact that admittedly the petitioner's wife gave birth to a child through operation and there is no other male member to take care of her and newborn child, this Court finds that a case for grant of interim regular bail is made out.

Accordingly, the petitioner is granted interim regular bail for a period of 30 days commencing from 10.06.2026, subject to furnishing the requisite bonds to the satisfaction of the Chief Judicial Magistrate/Duty Magistrate concerned.

The petitioner shall surrender before the concerned Jail Authorities before 5 PM on 09.07.2026.

The application in the aforesaid terms stands disposed off.

09.06.2026
Meenu

(SANDEEP MOUDGIL)
JUDGE

Whether speaking/reasoned :Yes/No
Whether reportable :Yes/No